

the complaint reveals no facts supporting a finding of malice, oppression, or fraud against either defendant. The motion to strike is granted and paragraph 14(a)(2) is stricken in its entirety.

Plaintiff bears the burden of demonstrating how the complaint may be amended to cure the defects therein. (*Jensen v. The Home Depot, Inc.* (2018) 24 Cal.App.5th 92, 97.) As the motion is unopposed, plaintiff falls short of this burden. Accordingly, leave to amend is denied.

15. S-CV-0057201 Weber, Anne Marie v. Wells Fargo Bank NA
T-CV-0002801 Kern, Gregory v. Weber, Anne Marie

Moving parties are advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Consolidate

Anne Marie Weber and Jon G. Jensen ("moving parties"), plaintiffs in S-CV-0057201 and defendants in T-CV-0002801, move to consolidate these two cases. The former is a wrongful foreclosure case brought by the moving parties against defendant Gregory Kern and four entity defendants (Wells Fargo Bank, N.A., Wilmington Savings Fund Society FSB, FCI Lender Services Inc., and Quality Loan Servicing Corporation) for claims of (1) wrongful foreclosure, (2) enforcement of rights under Civil Code section 2429m, (3) quiet title, and (4) declaratory relief. The latter is a post-foreclosure unlawful detainer action brought by Gregory Kern against Anne Marie Weber, Richard Finch, and by way of prejudgment claim of right to possession Jon G. Jensen. Kern opposes the motion to consolidate.

Preliminary Matters

Moving parties' request for judicial notice is granted.

Kern's request for judicial notice is granted as to exhibits B through K and denied as to exhibit A.

Gregory Kern filed an opposition on May 11, 2026 and then, without obtaining leave of court, filed a supplemental opposition on May 20, 2026. Seeing no objection from the moving parties, the court exercises its discretion to consider all briefing submitted in this matter.

Ruling on the Motion

The court may order consolidation of actions involving a common question of law or fact. (Code Civ. Proc., § 1048, subd. (a).) Here, both matters involve the same real property known as 249 Bend Avenue, Kings Beach, California 96143. The moving parties and Gregory Kern are parties in both actions. However, the four entity defendants

are parties only to the wrongful foreclosure action and Richard Finch is a party only to the unlawful detainer action. There are some common questions of fact. As to the legal issues, however, the issues raised in each case are distinct.

Moving parties argue consolidation is necessary to fully litigate title to the subject premises. “[T]itle issues generally cannot be raised in unlawful detainer actions. [Citation.]” (*Struiksmā v. Ocwen Loan Servicing, LLC* (2021) 66 Cal.App.5th 546, 554, citations omitted.) However, Kern argues that he purchased the real property for value at the trustee’s sale and is therefore a bona fide purchaser. Kern relies on *Morris v. JPMorgan Chase Bank NA* (2022) 78 Cal.App.5th 279 for the proposition that when a trustee’s deed recites all statutory notice requirements and procedures required by law, a rebuttable presumption arises that the sale has been conducted properly and that this presumption is conclusive to a bona fide purchaser in a post-foreclosure proceeding. Moreover, “No violation of this article shall affect the validity of a sale in favor of a bona fide purchaser and any of its encumbrances for value without notice” and violations of the Homeowners’ Bill of Rights after a foreclosure sale has already occurred permits money damages only. (Civ. Code, § 2924.12, subds. (b), (e).) While moving parties point to *In re Garcia* (9th Cir. BAP 2026) 676 B.R. 408 for the proposition that failure to comply with Civil Code section 2924m(c)(2)–(4) results in a foreclosure sale being rescinded, that case makes clear these procedures are only triggered if the highest bidder at the auction is not a “prospective owner-occupant,” as here. (Civ. Code, § 2924m, subd. (c)(1); *In re Garcia*, *supra* at p. 420.) Accordingly, complex issues of title that may justify consolidation in some cases, *Martin-Bragg v. Moore* (2013) 219 Cal.App.4th 367, are not present between these two actions.

Based on the foregoing, while these two matters involve a few common issues of fact, they involve divergent legal issues. Consolidation is not appropriate in such cases, and the motion is, accordingly, denied.
